

**PLACER COUNTY SUPERIOR COURT
CIVIL LAW AND MOTION TENTATIVE RULINGS
TUESDAY, JUNE 23, 2026**

These are the tentative rulings for civil law and motion matters set at **8:30 a.m. on Tuesday, June 23, 2026**. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., Monday, June 22, 2026**. Notice of request for oral argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date, and after approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

Except as otherwise noted, these tentative rulings are issued by the **HONORABLE TRISHA J. HIRASHIMA** and if oral argument is requested, it will be heard at 8:30 a.m. in **Department 42**, located at 10820 Justice Center Drive, Roseville, California 95678.

PLEASE NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR ALL CIVIL LAW AND MOTION MATTERS. (Local Rule 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

1. M-CV-0081949 Brewer Road Partners v. Storer, Jeremiah M

This tentative ruling is issued by the Honorable Colleen M. Nichols. If oral argument is requested, it will be heard on **Thursday, June 25, 2026 at 11:00 a.m. in Department 33**.

Motion to Vacate or Set Aside Void Judgment

Defendant and judgment debtor David Taylor moves for an order setting aside the June 8, 2023 judgment. Defendant argues the judgment was procured by fraud and various statutory and constitutional violations and cannot stand. Defendant specifically argues the trial court denied him his right to a jury trial, that plaintiff misrepresented facts pertaining to the partnership, and that plaintiff refused to engage in discovery.

Preliminarily, on June 2, 2026, defendant filed a document that includes an objection to this court hearing this motion because the judge is retired and because of a conflict. This judge sits by assignment under the Temporary Assigned Judges Program as assigned by the Chief Justice in their authority "to expedite judicial business and to equalize the work of the judges." (Article VI, sec. 6(e).) As to the allegation of conflict, post-trial motions are assigned to the trial judge when the trial judge is available.

This motion was filed with insufficient notice. All moving papers and supporting papers shall be served and filed at least 16 court days before the hearing. (Code Civ. Proc., § 1005, subd. (b).) Notice is extended when service is by electronic means, as it was here. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).) As defendant filed his moving papers on May 15, 2026 for a hearing initially scheduled for June 2, 2026, defendant provided a mere 11 court days' notice. This court's decision to continue the hearing to June 23, 2026 for scheduling purposes does not cure this issue and the motion is procedurally deficient.

Defendant's request for judicial notice is granted as to Exhibit B in its entirety and Exhibit F to the extent the document is a filed court record. However, the court does not take judicial notice of the arguments or information declared therein. The request for judicial notice is denied as to Exhibits A and E, because defendant did not provide a copy of these documents with its request. The request for judicial notice is denied as to Exhibits C and D because they are not judicially noticeable documents. (Evid. Code, §§ 451, 452.)

Substantively, the motion lacks merit. The same arguments defendant raises today have already been considered by this court for prior motions and by the Appellate Division. While defendant acknowledges in his briefing that the Appellate Division affirmed his appeal, and the Third District Court of Appeal declined extraordinary relief, and the California Supreme Court dismissed review of the matter, defendant does not acknowledge that this means the June 8, 2023 judgment is final. The only relief available at this stage of the proceedings is pursuant to Code of Civil Procedure section 473(d), as the court may at any time set aside a void judgment. However, that defendant disagrees with the decisions of this court and the Appellate division does not constitute a void judgment. Defendant fails to show the judgment is void. The court also observes the instant motion lacks any legal basis or justification and is frivolous as defined in Code of Civil Procedure section 128.5(b)(2). The motion is denied.

Defendant is on notice the court intends to summarily deny any similar future motions as the judgment is long since final and all possible avenues for review have been exhausted.

2. M-CV-0093201 All In Credit Union v. Paletta, Jason Raymond

The motion is dropped from calendar as no moving papers were filed with the court.

3. M-CV-0093623 Sunbelt Rentals v. Timothy P Hansen

Defendants' motion to set aside default

On January 12, 2026, defendants Timothy P. Hansen, individually and as trustee of the Timothy P. Hansen and Cheryl L. Hansen revocable trust dated 08/10/2021; Cheryl L. Hansen, individually and as trustee of the Timothy P. Hansen and Cheryl L. Hansen revocable trust dated 08/10/2021 filed a motion to set aside the default entered on November 19, 2025, pursuant to Code of Civil Procedure sections Code of Civil Procedure § 473(b).